



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

MAR 19 1991

DOT-E 10564

1. Carmar Associates, Incorporated, is hereby granted an emergency exemption from certain provisions of this Department's Hazardous Materials Regulations to offer a package prescribed herein of a corrosive material for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the one time shipment of two DOT Specification 111A100W-2 coiled and insulated tank car tanks which are overdue for tank tests and provides no relief from any regulations other than as specifically stated.

2. BASIS. This emergency exemption is based on Carmar Associates, Incorporated's application of March 14, 1991, submitted in accordance with 49 CFR 107.113, and a determination that it is necessary for the protection of life and property.

3. HAZARDOUS MATERIALS (Descriptor and class). Sulfuric acid, classed as a corrosive material.

4. PROPER SHIPPING NAME (49 CFR 172.101). Sulfuric acid.

5. REGULATION AFFECTED. 49 CFR 173.31(b)(1) and 173.31(c).

6. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.

7. SAFETY CONTROL MEASURES. Packagings prescribed are DOT Specification 111A100W-2 tank car tanks meeting all DOT requirements (49 CFR Parts 100-299), except that the tank car tanks are overdue for tests.

8. SPECIAL PROVISIONS.

a. Tank cars GATX 26074 and GATX 75978, must be marked "DOT-E 10564" in four inch letters on a contrasting background above the DOT specification number.

b. Shipment will be made from Chesapeake, Virginia, to Mount Gilead, Ohio, a distance of approximately 400 miles via the CSX and Conrail delivery. After the tank car tanks are emptied, they will be transported from the Sims Agricultural Products Company, Mount Gilead, Ohio to Rail Services, Incorporated, Paducah, Kentucky for tank testing, a distance of approximately 150 miles. They will be carried via Conrail and by the Paducah and Louisville Delivery.

c. The Federal Railroad Administration (FRA) is to be notified if any unusual incident, such as a derailment or exterior tank damage, occurs during the movement by contacting the:

Federal Railroad Administration
Office of Safety, RRS-12
400 Seventh Street, S.W.
Washington, D.C. 20590
(202) 366-9178 or 366-0549

d. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

9. REPORTING REQUIREMENTS: Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable.

10. EXPIRATION DATE. June 30, 1991.

Issued at Washington, D.C.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

MAR 19 1991

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Branch.

Dist: FRA.